

IV. PROCEEDINGS BEFORE THE DEPARTMENTS OF FIRST INSTANCE

A. Preliminary and formalities examination

1.	Introduction	1094
2.	Responsibility for formalities examination	1094
3.	Where and how applications may be filed	1095
4.	Persons entitled to file application	1095
5.	Accordance of a date of filing	1096
5.1.	Requirements for according a date of filing	1096
5.2.	Identity of applicant	1097
5.2.1	Requirement for information identifying the applicant (Rule 40(1)(b) EPC)	1097
5.2.2	Correction of designation of applicant (Rule 139 EPC)	1098
5.3.	Legal effect of accordance of a date of filing	1099
5.4.	Subsequent filing of missing parts of the description or missing drawings (Rule 56 EPC)	1100
5.4.1	Legal provisions	1100
5.4.2	Interpretation of Rule 56 EPC	1101
5.4.3	Whether to apply R. 56 EPC or R. 139 EPC	1102
5.5.	Corrections under Rule 139 EPC	1103
5.5.1	Legal provisions	1103
5.5.2	No replacement of invention	1103
5.5.3	Extent of competence of the Receiving Section for corrections under Rule 139 EPC	1104
5.6.	Change of date of filing	1105
6.	Examination of formal requirements	1106
6.1.	Requirements of a European patent application (Article 78 EPC)	1107
6.2.	Designation of the inventor	1107
6.3.	Any other requirement laid down in the Implementing Regulations	1108
6.3.1	General provisions governing the presentation of application documents (Rule 49 EPC)	1108
7.	Designation of states	1109
7.1.	Legal provisions	1109
7.2.	Effect of non-payment of the designation fee	1109
7.2.1	Deemed withdrawal	1109
7.2.2	Designation of states in divisional applications	1110
7.2.3	No correction of non-payment of fee under R. 88 EPC 1973	1110
7.3.	Correction of designation of states (Rule 139 EPC)	1110
7.3.1	Decisions considering the application of the EPC 1973	1110
7.3.2	Decisions considering the application of the EPC 2000	1112
8.	Priority	1112
8.1.	Filing of priority documents	1112
8.2.	Correction of priority declarations	1113
8.2.1	Requirement for mistake to have been made	1113
8.2.2	Time limit for request for correction	1113

8.2.3	Correction of the priority declaration under Rule 52(3) EPC	1116
9.	Fiction of withdrawal of the application (Rule 100(3) EPC)	1116
10.	Publication of the application	1116

1. Introduction

The EPO first examines whether a patent application satisfies the requirements for the **accordance of a date of filing** in accordance with the Implementing Regulations (Art. 80 EPC, Art. 90(1) EPC and R. 40 EPC). Only if an application is accorded a date of filing is the **examination as to formal requirements** commenced (Art. 90(3) EPC).

2. Responsibility for formalities examination

Under Art. 16 EPC, the Receiving Section is responsible for the examination on filing and the examination as to formal requirements of European patent applications. It retains responsibility up to the time when the Examining Division becomes responsible for the examination of the European patent application under Art. 94 EPC (R. 10 EPC).

The limitation in time of the Receiving Section's responsibility was previously in Art. 16 EPC 1973. The move to the Implementing Regulations ensures greater flexibility in determining when competence passes within the EPO from one department to another.

The Receiving Section is also no longer limited to the EPO's branch in The Hague as it was under Art. 16 EPC 1973. According to T 1012/03, the amendments to Art. 16 and 17 EPC deleting the allocation of the Search Divisions and Receiving Section to the branch at The Hague clearly indicate that the EPC no longer restricts the competence of the President of the EPO to decide which transactions shall be carried out at Munich and which at The Hague.

In G 1/02 (OJ 2003, 165) the Enlarged Board of Appeal pointed out that Art. 90 EPC 1973 and Art. 91 EPC 1973 entrusted to the Receiving Section certain duties relating to formalities examination of applications on filing, and the section's decisions may give rise to a loss of rights (see Art. 91(3) EPC 1973) which are appealable (see Art. 106 EPC 1973). The Receiving Section is composed entirely of formalities officers who – just like their counterparts working with opposition divisions – receive specialist training but are not required to have studied a technical subject or law at university.

In J 18/84 (OJ 1987, 215) the Legal Board of Appeal distinguished the respective areas of responsibility of the Receiving Section and the Legal Division regarding the designation of the inventor. The examination of an initial designation of inventor complying with Art. 81 EPC 1973 fell exclusively to the Receiving Section as one of its formalities examination responsibilities under Art. 16 and 91 EPC 1973. (These responsibilities are now in Art. 16 and 90(3) EPC). However, once entries began in the Register of European Patents – which under Art. 127, 2nd sentence, EPC 1973 coincided with the publication of

the European patent application – the Legal Division might be competent for disputed corrections.

In J 13/02, the board took the view that the fact that the EPC 2000 versions of Art. 16 to 18 EPC were already applicable in accordance with Art. 6 of the Revision Act did not alter the fact that the Receiving Section's competence came to an end once a valid request for examination has been made with the result that the examining division had to examine whether the application met the requirements of the EPC 1973 (Art. 94(1) EPC 1973 in conjunction with Art. 96(2), 97(1) and 97(2) EPC 1973).

See in this chapter IV.A.5.5.3 for the extent of competence of the Receiving Section in respect of requests for correction under R 139 EPC.

3. Where and how applications may be filed

Under Art. 75 EPC a European patent application may be filed with the EPO or, if the law of a Contracting State so permits, (and subject to Art. 76(1) EPC) with the central industrial property office or other competent authority of that State.

According to J 3/80 (OJ 1980, 92), the obligation to forward European patent applications filed nationally to the EPO rests upon the relevant central industrial property office and not upon the applicant (see also J 1/12 in this chapter IV.A.5.1.; see also chapter III.E.2.2. "Re-establishment only in cases of failure to observe a time limit for which it was for the applicant to observe").

The form of filing is governed by R 2 EPC; it can be by hand, by postal services or by means of electronic communication. Details and conditions are laid down by the President of the EPO.

4. Persons entitled to file application

A European patent application may be filed by any natural or legal person, or any body equivalent to a legal person by virtue of the law governing it (Art. 58 EPC). An application may also be filed either by joint applicants or by two or more applicants designating different contracting states (Art. 59 EPC).

In J 8/20 and J 9/20 the Legal Board confirmed the decisions of the Receiving Section of the European Patent Office to refuse two applications in which an artificial intelligence system was designated as inventor in the application forms. The Legal Board also refused the auxiliary request according to which no person had been identified as inventor but merely a natural person was indicated to have "the right to the European Patent by virtue of being the owner and creator of" the artificial intelligence system. The Legal Board held that under the EPC the inventor had to be a person with legal capacity.

In proceedings before the EPO, the applicant is deemed to be entitled to exercise the right to a European patent (Art. 60(3) EPC). This fiction only relieves the EPO of any need to investigate the existence of the entitlement. However, when a person referred to in

Art. 60(1) EPC, other than the applicant, disputes the entitlement to the grant of a European patent, the entitlement may be modified under the conditions provided for in Art. 61 EPC.

The Enlarged Board held in G 3/92 (OJ 1994, 607) that when it has been adjudged by a final decision of a national court that a person other than the applicant is entitled to the grant of a European patent, and that person, in compliance with the specific requirements of Art. 61(1) EPC, files a new European patent application in respect of the same invention under Art. 61(1)(b) EPC, it is not a pre-condition for the application to be accepted that the earlier original usurping application is still pending before the EPO at the time the new application is filed.

5. Accordance of a date of filing

5.1. Requirements for according a date of filing

The date of filing of the European patent application shall be the date on which the requirements laid down in the Implementing Regulations are fulfilled (Art. 80 EPC, which is applicable to European patent applications filed on or after 13.12.2007). Detailed provisions concerning the requirements have been moved to the Implementing Regulations (R. 40 EPC). The requirements include:

- an indication that a European patent is sought;
- information identifying the applicant or allowing the applicant to be contacted (see in this chapter IV.A.5.2.);
- a description or reference to a previously filed application.

The patent application must be filed with the EPO or other competent authority in accordance with Art. 75(1) EPC.

If a date of filing cannot be accorded following the examination under Art. 90(1) EPC, the application is not dealt with as a European patent application (Art. 90(2) EPC).

According to G 2/95 (OJ 1996, 555), Art. 80 EPC 1973 stipulated the minimum requirements which had to be met in order for a filing date to be accorded. Under Art. 80(d) EPC 1973 (see now R. 40 EPC, which no longer includes this requirement), the documents filed by the applicant had to contain a description and one or more claims (complying with Art. 14 EPC 1973, which was substantially amended in the EPC 2000).

In J 18/86 (OJ 1988, 165) the board stated that under R. 24 EPC 1973 in conjunction with Art. 75(1)(b) EPC 1973 the date of filing of a European application was always the date on which the application documents were actually received, either by the EPO directly or by a competent national authority. Nothing in the EPC 1973 admitted of the possibility of applying a provision of any national law to the determination of the date of filing of a European patent application.

In J 4/87 (OJ 1988, 172), the board held that in the event of an unforeseeable postal delay causing non-compliance with a time limit, if R. 85(2) EPC 1973 (relating to general interruption or subsequent dislocation in the delivery of mail in a Contracting State) was not applicable so as to extend the time limit, the EPO had no discretion to extend it. Applying the principles set out in J 18/86 above, the date of filing was the actual date of receipt by the EPO or a competent national authority. See also J 13/05.

In J 12/05, the Legal Board, citing J 4/87 and J 18/86, held that the EPC did not permit backdating of the filing date. It went on to state that, even where the conditions for extending the priority period under either R. 84a EPC 1973 or R. 85 EPC 1973 were met, this did not result in a change of the actual filing date. Instead, there arose a legal fiction that the priority period had been observed, even though the filing date was actually later than that period's expiry date.

In T 382/94 (OJ 1998, 24) the board held that if the drawings were filed in full on the date of filing, they formed part of the application as filed, even if they contained text matter in an official language other than the language of the proceedings. There was nothing to prevent the application being amended on the basis of a translation of this text matter into the language of the proceedings. The language requirements for a European patent application were amended under the EPC 2000, see chapter III.F.1. "Language of filing and date of filing of a European patent application".

In J 1/12 the appellant had filed a European patent application with the UK Patent Office with the same documents as those underlying the later application before the EPO. The application in the UK never reached the EPO. The Legal Board therefore had to consider whether, contrary to Art. 80 EPC 1973, it was justified to assign the application the earlier filing date (Art. 75(1)(b) EPC 1973). Art. 77(2) EPC 1973 provides that European patent applications filed within the member states are to be forwarded to the EPO within six weeks after filing. Art. 77(5) EPC 1973 supplements this provision by providing that European patent applications which do not reach the EPO before the specified time limit are deemed to be withdrawn. It followed that the application filed with the UK Patent Office was deemed to have been withdrawn. No re-establishment of rights is provided for. In such a situation the legislator expressly provides in the last sentence of Art. 77(5) EPC 1973 for the refund of the filing, search and designation fees. In addition, Art. 135(1)(a) and 136(2) EPC 1973 provide facilities for a conversion of the lost European patent application into national patent applications. It followed that the legislator of the EPC clearly recognised the harsh consequences of Art. 77(5) EPC 1973 for an applicant. But, having recognised the problem, the legislator did not provide the applicant with any means to regain the lost application.

5.2. Identity of applicant

5.2.1 Requirement for information identifying the applicant (Rule 40(1)(b) EPC)

R. 40(1)(b) EPC provides that the date of filing of a European patent shall be the date on which the documents filed by the applicant contain, inter alia, 'information identifying the